

**OFFICE OF THE SECRETARY**

P.O. Box 942883  
Sacramento, CA 94283-0001



July 26, 2018

Honorable Barbara M. Scheper  
Judge of the Superior Court  
County of Los Angeles  
900 Third Street  
San Fernando, CA 91340

Re: Molina, Angel  
CDC No.: G33423  
Case No.: PA059233-01  
Date of Sentence: 09/03/2008

Dear Honorable Barbara M. Scheper:

The purpose of this letter is to provide the court with authority to resentence Angel Molina pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Molina was sentenced in 2008, and was convicted of section 245, subdivision (A)(2), ASLT W/FIREARM ON PERSON. The trial court sentenced inmate Molina on 09/03/2008. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Molina's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Molina's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

  
SCOTT KERNAN  
Secretary

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge  
Los Angeles District Attorney  
Private Attorney



# ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-292 ATTACHED]

CR-292

|                                                                                    |                                                      |                                                                                                      |
|------------------------------------------------------------------------------------|------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>LOS ANGELES, NORTH VALLEY DISTRICT</b> |                                                      |                                                                                                      |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <b>MOLINA, ANGEL</b>           | DOB: <b>08-27-84</b>                                 | <b>PA059233-01</b> -A                                                                                |
| AKA:                                                                               |                                                      | -B                                                                                                   |
| CII NO.: <b>A22790911</b>                                                          | <input type="checkbox"/> NOT PRESENT                 | -C                                                                                                   |
| BOOKING NO.: <b>9807225</b>                                                        | <input checked="" type="checkbox"/> AMENDED ABSTRACT | -D                                                                                                   |
| DATE OF HEARING<br><b>09-03-08</b>                                                 | DEPT. NO.<br><b>NV-H</b>                             | JUDGE<br><b>BARBARA M. SCHEPER</b>                                                                   |
| CLERK<br><b>S. BLAND</b>                                                           | REPORTER<br><b>P. DOWNS</b>                          | PROBATION NO. OR PROBATION OFFICER<br><b>X-1881169</b> <input type="checkbox"/> IMMEDIATE SENTENCING |
| COUNSEL FOR PEOPLE<br><b>T. MOKAYEF DA</b>                                         |                                                      | COUNSEL FOR DEFENDANT<br><b>S. C. FLANAGAN PRIVATE</b> <input type="checkbox"/> APPTD.               |

1. Defendant was convicted of the commission of the following felonies:

☒ Additional counts are listed on attachment

**1** (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME            | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |      | CONCURRENT | CONSECUTIVE | 654 STAY |
|-------|------|-------------|------------------|----------------------|------------------------------------|--------------|-------|------|------------|-------------|----------|
|       |      |             |                  |                      |                                    | JURY         | COURT | PLEA |            |             |          |
| 1     | PC   | 664-187 (A) | ATTEMPTED MURDER | 07                   | 06-10-08                           | X            |       |      |            |             |          |
| 2     | PC   | 664-187 (A) | ATTEMPTED MURDER | 07                   | 06-10-08                           | X            |       |      |            |             |          |
|       |      |             |                  |                      |                                    |              |       |      |            |             |          |
|       |      |             |                  |                      |                                    |              |       |      |            |             |          |
|       |      |             |                  |                      |                                    |              |       |      |            |             |          |
|       |      |             |                  |                      |                                    |              |       |      |            |             |          |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT              | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT              | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT     | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------|--------------------------|--------------------------------|--------------------------|--------------------------------|-----------------|--------------------------------|-------|
| 1     | 186.22 (B)(1) (C) PC     | S                              | 12022.53 (C) PC          | 20                             | 12022.53 (B) PC | S                              | 20 0  |
| 1     | 12022.53 (B) & (E)(1) PC | S                              | 12022.53 (C) & (E)(1) PC | S                              |                 |                                | 0 0   |
| 2     | 186.22 (B)(1)(C) PC      | S                              | 12022.53 (C) PC          | 20                             | 12022.53 (B) PC | S                              | 20 0  |
| 2     | 12022.53 (B)&(E)(1) PC   | S                              | 12022.53 (C) &(E)(1) PC  | S                              |                 |                                | 0 0   |
|       |                          |                                |                          |                                |                 |                                |       |
|       |                          |                                |                          |                                |                 |                                |       |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |

Defendant was sentenced to State Prison for an INDETERMINATE TERM as follows:

4. ☐ LIFE WITHOUT THE POSSIBILITY OF PAROLE on counts \_\_\_\_\_
5. ☐ LIFE WITH THE POSSIBILITY OF PAROLE on counts \_\_\_\_\_
6. a. ☒ 15 years to Life on counts **1**      c. ☒ **15** years to Life on counts **2**. ( PLUS ENHANCEMENTS FOR A TOTAL OF 45 YEARS  
b. ☐ 25 years to Life on counts \_\_\_\_\_      d. ☐ \_\_\_\_\_ years to Life on counts TO LIFE ON EACH. CT'S 1 AND 2 ).  
PLUS enhancement time shown above.
7. ☐ Additional determinate term (see CR-290).
8. Defendant was sentenced pursuant to ☐ PC 667(b)-(i) or PC 1170.12 ☐ PC 667.61 ☐ PC667.7 ☐ other (specify):

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for indeterminate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2



**CR-290-A**

PA059233-01 -A

-B

-C



This attachment page number: 1

|       |   |   |
|-------|---|---|
| TOTAL | 4 | 0 |
|-------|---|---|

|       |    |   |
|-------|----|---|
| TOTAL | 23 | 0 |
|-------|----|---|

|   |   |
|---|---|
| 0 | 0 |
|---|---|

|    |   |
|----|---|
| 27 | 0 |
|----|---|



PEOPLE OF THE STATE OF CALIFORNIA vs.  
DEFENDANT: MOLINA, ANGEL ADAN

PA059233-01 -A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$10,000 per PC 1202.4(b) forthwith per PC 2085.5; \$10,000 per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.  
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case B: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case C: \$ Amount to be determined to victim(s)\* Restitution Fund  
Case D: \$ Amount to be determined to victim(s)\* Restitution Fund

\* Victim name(s), if known, and amount breakdown in Item 11, below. \* Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case B: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case C: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense  
Case D: \$ per PC 1202.5. \$ per VC 23550 or days county jail prison in lieu of fine concurrent consecutive  
includes: \$50 Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$140.00 per PC 1465.8.

10. TESTING a. Compliance with PC 296 verified b. ☒ DNA per PC 296 c. AIDS per PC 1202.1 d. other (specify):

11. Other orders (specify):

THE DEFENDANT IS ORDERED TO PROVIDE BUCCAL SWAB SAMPLES, A RIGHT THUMB PRINT, A FULL PALM PRINT IMPRESSION OF EACH HAND, ANY BLOOD SPECIMENS OR OTHER BIOLOGICAL SAMPLES AS REQUIRED BY THIS SECTION FOR LAW ENFORCEMENT IDENTIFICATION.  
15 YEARS MINIMUM PAROLE ELIGIBILITY TERM PURSUANT TO PENAL CODE 186.22(B)(5)PC IS IMPOSED CONSECUTIVELY AS TO CNTS.1 AND 2.  
IMPRISONED IN STATE PRISON FOR A TOTAL OF 97 YEARS TO LIFE.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit  
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HIS

14. CREDIT FOR TIME SERVED

| CASE                      | TOTAL CREDITS | ACTUAL                            | LOCAL CONDUCT                                                       |
|---------------------------|---------------|-----------------------------------|---------------------------------------------------------------------|
| A                         | 572           | 497                               | 75 <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1 |
| B                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| C                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| D                         |               |                                   | <input type="checkbox"/> 4019<br><input type="checkbox"/> 2933.1    |
| Date Sentence Pronounced: |               | Time Served in State Institution: |                                                                     |
| 09-03-08                  |               | DMH                               | CDCR CRC                                                            |

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.  
b. ☐ at resentencing per decision on appeal.  
c. ☐ after revocation of probation.  
d. ☐ at resentencing per recall of commitment. (PC1170(d).)  
e. ☐ other (specify):

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☒ after 48 hours excluding Saturdays, Sundays, and holidays.  
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.  
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

D.ROMERO

DATE

07-01-10

